FIELDNOTES

Giving the Dead a Place in Law: Learning from China's Precedent on AI

Summary of 「AI故人の法を考える：中国の先例から」 (in Japanese)

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Countries around the world are drafting AI laws, yet most of them say little about the dead, or treat them only through the commercial use of celebrity likenesses. China is an exception. Since 2025, its administrative, regulatory and judicial authorities have each named the dead explicitly and begun to give legal language to the AI recreation of the dead, which I call *AI kojin* (AI representations of the deceased; *kojin* is a respectful Japanese word for the departed). This essay asks where China stands among the world's AI laws, and why it was able to go so far.

BACKGROUND

China is where AI recreations of the dead spread earliest and most widely. Between 2022 and 2024, start-ups and individual sellers offered such services through apps, e-commerce sites and social media. The 2023 Interim Measures for Generative AI quickly set out what generative AI must not do, including infringing on others' portrait, reputation and privacy rights, while the state promoted AI use within those limits. None of these rules, however, addressed deceased private individuals directly; providers I interviewed treated the bereaved family as the rights-holder by contract.

THREE LINES, 2025 TO 2026

- **Administrative.** In April 2025, the Cyberspace Administration of China listed the "improper use of AI to resurrect the deceased" as an enforcement target.
- **Regulatory.** The Interim Measures on Anthropomorphic AI Interaction Services (effective July 2026) aim to prevent emotional dependency and ban "virtual relatives" for minors. A draft ban on simulating elderly users' relatives was dropped.
- **Judicial.** In September 2026, the Supreme People's Court confirmed that close relatives may sue, under Article 994 of the Civil Code, over unauthorized "virtual digital images" of the dead. Lower courts have begun to follow.

WHERE CHINA STANDS

Only US state laws address the dead as directly. Neither the US nor China bans conversing with the dead through AI; both attach conditions. What differs is what those conditions look at. US laws protect the likeness of the dead as estate property and watch for the risk of suicide or self-harm in companion chatbots. China entrusts the likeness of the dead to close relatives and seeks to prevent dependency before harm occurs, warning that relationships with AI may replace human ones. I call this a **"layered" model**: civil remedies centered on the family, administrative rules against dependency, and content campaigns.

WHY IT WAS POSSIBLE

Three foundations predate AI: law that already protected the personality interests of the dead through close relatives (unlike Japan, which protects the bereaved's feelings of reverence, or Germany, which protects the dignity of the dead); administrative tools against online addiction, from gaming limits in 2021 to AI; and a long history of state governance of funerals, revised in 2026 to stress public interest and the protection of the deceased's information online. China treats the dead not as independent subjects but as part of a family order.

IMPLICATIONS

Every country will face two questions: who decides on the likeness of the dead, and what conditions the law places on talking with them. China's case suggests that laws on AI and the dead cannot be written apart from how the dead live in each society. This essay does not judge China's approach; it draws one line to help observe where AI law is heading.

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